

# Mediation Execution Plan — Rahman v. UHSH et al., 3:26-cv-00197 (N.D.N.Y.)

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## 1. Sequencing — Backward Plan from November 2026

Governing rule (Drazen, FE 00:05:23): **no mediation without defendants’ discovery responses**. The leverage index moves ~6.5/10 → ~8/10 only if the academic record, ANSCO CCTV, and Nadeem texts land and the amendment is granted (win-probability §3). Months below: pressure-point-map §8 sequence run from Aug 2026.

| Target                        | Milestone (owner/instrument)                                                                                                                                                                                                                                                                        | Why it must land first                                                                |
|-------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|
| <b>Nov 2026</b>               | Court-ordered mediation completed (DZ-03); GML 50-e(5) late-notice decision due — window closes ~Dec 2026                                                                                                                                                                                           | The deadline everything backs off                                                     |
| Ahead of Nov (months 4–6)     | Depositions, divergence-ordered: 30(b)(6) first → Ali (signature/forgery — binary) → Rehman (COI email + EHR audit trail) → Ahmed (separate counsel) → Nadeem last, documentary net closed                                                                                                          | Transcript contradictions get priced into the mediation                               |
| Months 2–4 (Sept–Nov)         | Third-party returns: Guthrie (police-call record, poster approval chain, CCTV/security logs), Nadeem carrier subpoena, DA file/FOIL incl. the “43 of the forgery” document, ANSCO CCTV or the built spoliation record                                                                               | The three evidence keystones drive the probable-cause fight (O-6/O-7)                 |
| Months 2–3 (Sept–Oct)         | Contention-interrogatory answers: AF 6 vs. AF 8 reconciled act-by-act; every April 14 leave-decision participant identified; poster creator/distribution                                                                                                                                            | Locks positions before anyone testifies                                               |
| <b>~Sept 2026 — HARD RAIL</b> | <b>Omnibus amendment filed</b> (NY malicious prosecution, §1983 MP joint-action, NYSHRL + §296(6), FMLA-willful, Rehab Act) inside CPLR 215(3) [unverified — confirm with counsel]; fallback: protective state-court action; never rely on relation-back (O-1)                                      | Unlocks uncapped distress, punitives, FMLA doubling, asymmetric fees — the Tier 2 top |
| Months 1–2 (Aug–Sept)         | Paper first: preservation letters (UHSH, Guthrie, ANSCO, Nadeem personally); DZ-01 ~14 consolidated demands served, <b>academic record first</b> ; probation file with native metadata; EHR audit trail; UHS–Guthrie legal-team communications; DA subpoena copy                                    | Every gap vs. the DA-produced set is an exhibit                                       |
| <b>Now (Aug 2026)</b>         | Confirm exact acquittal date + charging instrument + NDNY amendment deadline; resolve Flag 4 (Florida-contract execution, 00:13:03 vs. 00:14:21) and the 2022-vs-2024 year; damages papering (FR-01 wires, pharmacy records, psych corroboration); FR-02 academic-record markup → correction demand | The two highest-leverage unknowns                                                     |

**Go/no-go gate:** if the keystones have not landed by the session, mediate on the non-monetary package plus Tier 1 receipts only; hold Tier 2’s top and Tier 3 for a resumed session. An unsupported number spent early cannot be respent.

## 2. Non-Monetary Demands FIRST

These open every session: the client's true first-order objective, cheap for defendants, and proof of the theme — *accountability and sustainable change, not punishment*. Treated as **equivalent to the first several million dollars** in any trade-off (win-probability §3). **Non-negotiable at any price point.**

| # | Demand                                                                                                                                                         | Framing language (deploy as written)                                                                                                        |
|---|----------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------|
| 1 | Full correction/expungement of the academic record — probation removed, every document bearing the alleged forged signature withdrawn; ACGME-consistent record | "You reinstated him in a day and graduated him — the paper never caught up with your own decision. Correcting it costs UHS nearly nothing." |
| 2 | Clean, board-safe verification/certification letters from UHSH to licensing authorities (NYS and other states)                                                 | "The question he cannot answer — 'have you ever been arrested' — is not on your form, but the record behind it is yours to correct."        |
| 3 | Written, USCIS-usable stipulation confirming internal exoneration, reinstatement, graduation, and the favorable termination (NOT GUILTY, Sept 2025)            | "Put in writing only what you already did: you cleared him, kept him, graduated him — and a jury acquitted him."                            |
| 4 | Neutral-or-better employment-reference protocol; mutual non-disparagement                                                                                      | "The cheapest term on the page — and the one that lets both sides stop litigating each other's reputations."                                |
| 5 | Institutional-change component: conflict-of-interest and GME probation-procedure reform                                                                        | "The goal is accountability and sustainable change, not punishment — this term is what makes that sentence true for the next resident."     |

## 3. Anchor Choreography

**Entry point.** The ~\$100M (ASSERTED / NEGOTIATION POSTURE) figure never appears in the mediation statement or any joint session. It enters **once**, spoken by counsel, **in caucus**, as the carrier-exposure conversation: the runaway-jury tail a self-insured or carrier-advised defendant must probability-weight, built transparently from Tier-3 arithmetic (\$12.5M max compensatory, ASSERTED, plus \$87.5M punitive — 12.5M × 7:1 *Zhang* CL 783131, 9th Cir., persuasive only — plus \$1.5M fees ESTIMABLE = \$101.5M).

**Caveat script (verbatim, immediately after the number):** *"For that to happen, all seven assumptions have to break our way — the amendment granted in full, academic deference and peer-review immunity failing entirely, a jury accepting a lifetime-earnings model despite Tarpley, egregious-tier distress proof, a 7:1 ratio imported over Turley/Payne compression, no remittitur at either level, and full causation. We are not valuing the case there. But your carrier prices tails — and the fee clock compounds monthly."*

**Concession ladder — every rung trades something and demands something back:**

| Rung             | Figure (label)                                                                                                            | We trade                                                                                 | We demand back                                                                         |
|------------------|---------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------|
| Exposure framing | ~\$100M (ASSERTED / POSTURE — caucus, once, counsel only)                                                                 | Visibly stepping off it to Tier-2 architecture — a credibility gift the mediator watches | Non-monetary package accepted <b>in principle</b> before dollars are discussed         |
| Client threshold | \$40M (POSTURE, client directive — ~2.4× Tier 2 top; counsel must own that gap with the client <b>before</b> the session) | Movement off the client's stated threshold toward the defensible band                    | Record correction + verification-letter protocol reduced to signed term-sheet language |

| Rung               | Figure (label)                                                                                                                                                       | We trade                                                                                                                                                     | We demand back                                                                                    |
|--------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------|
| Defensible band    | \$4.34M–\$16.57M (ESTIMABLE — Tier 2, verified-law arithmetic)                                                                                                       | Concessions inside the band, each tied to a named proof condition (expert not yet retained; psych corroboration pending; punitive-base assumption disclosed) | USCIS stipulation + reference protocol executed; fees (\$250K–\$750K ESTIMABLE) inside the number |
| Model-implied zone | \$2M–\$7M today / \$5M–\$12M if discovery + amendments land (ESTIMABLE — assumption-laden)                                                                           | Dollar flexibility, early and visibly, for completeness of non-monetary relief — this <i>proves</i> the theme                                                | <b>All five</b> must-haves complete, including the institutional-change term                      |
| Floor / BATNA      | \$1.22M–\$1.60M Tier 1 (DOCUMENTED/ESTIMABLE; Florida-contract line DOCUMENTED-PENDING/ASSERTED until the instrument is in hand — Flag 4) <b>plus all must-haves</b> | Nothing below this                                                                                                                                           | Below the floor, or missing any must-have → adjourn and resume post-production; do not concede    |

## 4. Mediator-Credibility Rules

**We never say:** \$100M or \$40M as a valuation, expectation, or computed damage; emotional distress under Title VI/Rehab/FMLA (*Cummings* CL 6463720); punitives under Title VI (*Barnes* CL 121152); anything from Universal Health Services' or UnitedHealth Group's record (\$122M DOJ; \$500M Nevada — wrong companies; sanctions-grade misattribution); the “13 days”/signed-April-1 contract narrative until Flag 4 is resolved; killed citations (*Tarpley* as a plaintiff comparator, *Breest*, *Reynaud*, *McDonnell Douglas*/Mt. *Healthy*/Price *Waterhouse*/Briscoe/McKennon — unverified); unverified comparators (*Walker v. Ascension* ~\$10M, *Pizarro* \$1.725M, *Walsh/Su v. Tara*) without the explicit “unverified — confirm with counsel” flag.

**Label discipline — which numbers get which labels:**

| Number                                                                                                       | Label spoken with it                                                                                                  |
|--------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------|
| \$1.22M–\$1.60M (Tier 1)                                                                                     | DOCUMENTED/ESTIMABLE — receipts offered; FL line DOCUMENTED-PENDING/ASSERTED until the executed instrument is in hand |
| \$4.34M–\$16.57M / \$2.09M–\$6.7M comp / \$2M–\$8M punitive / \$0–\$1.12M FMLA doubling / \$250K–\$750K fees | ESTIMABLE — conditional; disclose the punitive-base assumption every time the \$2M–\$8M band is used                  |
| \$2M–\$7M / \$5M–\$12M zone                                                                                  | ESTIMABLE — assumption-laden; internal pricing, not a stated demand                                                   |
| ~\$100M / \$40M                                                                                              | ASSERTED / NEGOTIATION POSTURE — Rule 11 / mediator-credibility caveat; counsel approval; used once                   |

**One-overreach principle (O-26/O-27):** a mediator who discounts our numbers discounts our facts. One punctured citation, borrowed rap sheet, or posture figure presented as an expectation discounts everything defensible with it. The anchor works exactly once — only if every number around it is scrupulously labeled. Mediator credibility is the asset the entire model protects.

## 5. Walk-Away Logic + BATNA

**Walk-away line:** Tier 1 (\$1.22M–\$1.60M) **plus all five non-monetary must-haves.** A larger check without the must-haves fails the client’s first-order objective; no check replaces them.

If mediation fails: - **Trial posture.** Composite probability that at least one significant claim survives to trial-ready posture ≈ **80–90%** — independent theories on one factual spine; depositions continue (Ali’s binary forgery exam; Rehman’s EHR audit trail). - **Fee-shifting accrual.** Three fee statutes (§1988(b); FMLA §2617(a)(3) mandatory; NYSHRL §297(10) asymmetric — official-source texts, unverified — confirm with counsel) grow defendants’ exposure monthly; \$250K–\$750K ESTIMABLE lodestar through trial, \$1.5M ESTIMABLE through appeal. - **\$1983 rail.** The federal MP rail stays open to ~Sept 2028 (*Owens v. Okure* CL 112166; *McDonough* CL 4631414); the state MP count, if filed by ~Sept 2026, rides regardless. - **Non-litigation tracks.** ACGME complaint (FR-07) held in reserve as leverage; the ANSCO CCTV spoliation record matures toward Rule 37(e) relief. - **Honesty adjustment.** Time hurts us too (~2 leverage adjustment: ICD unchecked ~3 years — DOCUMENTED lapse; no income ~3 years; licensure/USCIS urgency). The walk-away is real, but **adjourn-and-resume beats theatrical walkout:** every post-mediation production moves the zone toward \$5M–\$12M.

## 6. Defendant-Side Read (per pressure-point-map)

| Defendant (pressure)                | What they want out of mediation                                                                                                                            | What that buys us                                                                                                            |
|-------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|
| <b>UHSH</b> (9/10)                  | Stop the fee clock, spoliation record, Title VI pattern/regulatory echo, and AF 6/AF 8 contradiction before the 30(b)(6); protect the non-profit narrative | The non-monetary package — record correction, letters, stipulation — costs UHSH almost nothing; it is the global-peace payor |
| <b>Dr. Ahmed</b> (7/10)             | Exit before his personnel/departure file and the authority contradiction surface; escape the AF 8 abandonment zone                                         | Early separate peace: a truthful declaration on program authority and record handling beats his money                        |
| <b>Dr. Nadeem</b> (7/10)            | Resolution before his phone/carrier production lands                                                                                                       | Cooperation — his texts are the instigation keystone; any deal preserves the record needed against the others                |
| <b>Dr. Rehman</b> (8/10)            | Global peace before his deposition (COI step-down email; EHR audit trail; OPMC/licensure exposure beyond this suit)                                        | The most motivated internal advocate pushing UHSH to pay                                                                     |
| <b>Dr. Ali</b> (8/10)               | Never face the binary forensic signature examination                                                                                                       | Rational defendants do not ride binary risks to verdict; counsel substitution is the tell                                    |
| <i>Guthrie</i> (non-party, 7/10)    | Stay a witness, not a co-conspirator                                                                                                                       | Its productions raise UHSH's conspiracy exposure; credible joinder is pressure only if the record supports it                |
| <i>Broome DA</i> (5/10, derivative) | N/A — records source, prosecutors immune ( <i>Imbler</i> CL 109387)                                                                                        | Corroboration only; by-the-book requests, no pressure tactics                                                                |

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